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Court of Appeal

31 July 1987

B e f o r e :

Lord Justice DILLON, Lord Justice MUSTILL and Sir Edward EVELEIGH

Between:
BP PROPERTIES LTD
V
BUCKLER

J B W McDonnell QC and M Jarman (instructed by Robbins Olivey & Blake Lapthorn, agents for Loosemores, of Cardiff) appeared on behalf of the appellant; Paul Morgan (instructed by Linklaters & Paines) represented the respondents.

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1. Giving judgment, DILLON LJ said: This appeal, by the defendant in the action against a decision of Hollis J given on July 24 1986 when he was sitting as a judge of the Queen's Bench Division in Cardiff, raises a novel question of some potential importance under the provisions of the Limitation Acts 1939 and 1980 in relation to the acquisition of title to land by adverse possession.

2. The action concerns a farm known as Great House Farm at Llandough near Penarth in South Glamorgan. The plaintiffs, BP Properties Ltd, have the paper title to the farm, and indeed since November 1982 they have been the registered proprietors of it at HM Land Registry following first

registration. They claimed possession against the defendant, Mr W Buckler ('Mr Buckler junior') and he sought to set up a possessory title by adverse possession by himself, and by his parents, Mr and Mrs Frederick Buckler, before him. The judge held that the suggested possessory title was not made out, and he accordingly made the possession order which the plaintiffs sought. Mr Buckler junior appeals against that order, but the appeal has been limited to the farmhouse itself and its garden, shown coloured red on the plan served with the statement of claim. So far as the rest of the farm is concerned, the possession order is not challenged, since the claim to a possessory title failed on findings of fact by the judge that the acts of so-called possession relied on were altogether too tenuous and equivocal to support the claim.

3. So far as the farmhouse and garden are concerned, however, the position on the facts is different, in that there is no doubt that Mr Buckler junior has exclusive possession of the farmhouse and garden, as his parents did before him, and no rent has been paid since 1953.

4. Great House Farm used to belong to the Marquis of Bute, and in February 1916 the Marquis granted a yearly agricultural tenancy of the whole of the farm to a Mr John Williams, who was Mr Buckler junior's maternal grandfather. In 1938 the reversion on that tenancy was conveyed to a company called Western Ground Rents Ltd.

5. It appears that Mr Williams, who may already by then have been elderly, fell into arrears with his rent in the mid-1930s and in the late 1940s. Because of that, agreement was reached for Mr Williams' tenancy to be surrendered and for a new yearly agricultural tenancy commencing at February 2 1949 to be granted to Mr Williams' son-in-law, Mr Frederick Buckler, who was the father of Mr Buckler junior. It was intended that Mr Frederick Buckler should have a written tenancy agreement, but this did not happen because Mr Frederick Buckler also failed to pay the rent. There is a letter from the landlords' agents to their solicitors of October 10 1952 stating that they did not propose to proceed with the letting to Mr Frederick Buckler. However, the conclusion must be that, even though there was no written agreement, Mr Frederick Buckler had a periodic tenancy which was protected by the Agricultural Holdings Act.

6. It is unnecessary to go into the details of the payments made by Mr Frederick Buckler. On the evidence, the last payment of rent made by him - in fact a payment under a judgment for arrears of rent - was made at some time in 1953. His tenancy was then duly terminated by a notice to quit which expired on February 2 1955. Western Ground Rents then brought proceedings for possession against Mr Frederick Buckler in the High Court and obtained a possession order, under Order 14, in respect of the whole of the farm. On July 4 1955 that possession order was enforced, and possession was taken in respect of all parts of the farm except the farmhouse and garden. The reason why the order was not enforced in respect of the farmhouse and garden was that Mrs Mary Buckler (daughter of Mr Williams, wife of Mr Frederick Buckler and mother of Mr Buckler junior) had recently come out of hospital after having had a leg amputated and was objecting very strongly to leaving the farmhouse. There was even, apparently, a fear that she might attempt suicide.

7. In the upshot, Mr and Mrs Frederick Buckler's occupation of the farmhouse and garden was undisturbed for many years. Mr Buckler junior was also there, but he was then only a boy, having been born on August 25 1948. Mr Williams and his wife Mrs Esther Williams had also been living there in 1955, but they died. By 1959, at any rate, Mrs Mary Buckler, who was also from time to time referred to as Mrs Williams, had conceived the notion that she had a title to the ownership of Great House Farm through her own grandfather and that there were documents in existence which proved her title. No such documents were, however, ever produced. She was offered a tenancy of the farmhouse and garden by Western Ground Rents but refused to accept it. She was also later offered, and refused, alternative accommodation.

8. The advisers of Western Ground Rents seem during these years to have supposed that, if they attended at the farmhouse from time to time and asserted Western Ground Rents' title, that was

sufficient to prevent time running against Western Ground Rents under the Limitation Act 1939. Plainly, however, that notion was erroneous, as section 13 of the Act provides that 'no person shall be deemed to have been in possession of any land by reason only of having made a formal entry thereon, and no continual or other claim upon or near any land shall preserve any right of action to recover the land'.

9. In 1962, however, Western Ground Rents brought a fresh action in Cardiff County Court against Mr Frederick Buckler and Mrs Buckler for possession of the farmhouse and garden and mesne profits since 1955. On December 11 1962 a possession order was made by Judge Temple Morris QC together with an order for payment of mesne profits. The latter was to some extent enforced, in that there seems to have been a suspended committal order against Mr Frederick Buckler in June 1963, but nothing was done before 1974 to enforce the 1962 possession order. In the meantime Mr Frederick Buckler died at some time in the period 1965-67, and in December 1969 Great House Farm, including the farmhouse and garden, was sold by Western Ground Rents to BP Pension Trust Ltd.

10. After the death of Mr Frederick Buckler, Mrs Buckler remained in possession of the farmhouse and garden, with various of her children living there with her, including Mr Buckler junior. No payment was made.

11. In 1974 BP Pension Trust Ltd started a fresh action in the Cardiff County Court for possession and mesne profits against Mrs Buckler (sued as Mrs Williams) and various members of her family, including Mr Buckler junior. This was adjourned part heard on July 3 1974 for a formal defence to be filed on behalf of Mrs Buckler, and a defence was filed asserting that BP Pension Trust's claim was barred by adverse possession under the Limitation Act 1939; so far as Mr Buckler junior is concerned, it was pleaded that he occupied the property as licensee of Mrs Buckler. That action has never been finally heard. However, on September 17 1974 BP Pension Trust Ltd gave notice of an application by them as successors in title to Western Ground Rents for leave to enforce the possession order of December 11 1962 (the order of Judge Temple Morris QC) and on September 19 1974 Judge Watkin Powell on that application gave BP Pension Trust Ltd leave to execute the order for possession of December 11 1962. He ordered that the possession warrant do issue forthwith but be not enforced until October 31 1974.

12. On October 30 1974 Mrs Buckler's solicitors issued a notice of appeal to this court against the order of Judge Watkin Powell (on the ground that Mrs Buckler had had insufficient notice of the application and therefore had had no opportunity of presenting her case) and her solicitors took an appointment before the judge in the Cardiff County Court for Monday November 4 for a stay of execution of his order of September 19 1974. More effectively, however, as soon as Judge Watkin Powell's order was known, a press campaign broke out in South Wales, with some support on television, against the threatened eviction of Mrs Buckler. Mrs Buckler was described as an elderly widow, confined to a wheelchair, who was being thrown out of the cottage her family had occupied for centuries, so that the historic cottage could be bulldozed to the ground and developers could build executive houses on the site.

13. Against that background, the two letters which are at the heart of this case were written. Both are dated October 31 1974. One is from BP Pension Trust Ltd and the other from the present plaintiffs, BP Properties Ltd. Both are addressed to Mrs Buckler (described again as Mrs Williams), but both were in fact sent not to her but to her solicitor, who seems to have received them on the morning of November 4, immediately before he made his application to Judge Watkin Powell in the Cardiff County Court.

14. The letter from BP Pension Trust is as follows:

> We have been advised that you are making an application to the Court for a Stay of Execution of the Order for Possession which was recently

> confirmed, and that you are proposing to apply to have the judgment of the Court, which we were seeking to enforce, set aside.
>
> You will, we hope, understand that the Trustees of The British Petroleum Pension Trust are not, and never have been, unsympathetic to your position, but they are bound in law to have a prime regard for the interests of their Pensioners and they had no alternative but to exercise remedies against you which the law provides.
>
> The only way in which they could safeguard your future occupation of Great House Farm is by selling the property to a purchaser who is not bound by similar constraints. We are now pleased to advise you that we have found such a purchaser in BP Properties Ltd, who have agreed to buy the property from the Trust. Accordingly, the instructions given to the Bailiff to execute the judgment of the Court have been withdrawn.
>
> As the Possession Order will not now be executed, your application for a Stay of Execution becomes unnecessary. Your Solicitors are immediately being advised accordingly.

15. The letter from BP Properties is as follows:

> You will be hearing separately from our Pension Trust that they are selling Great House Farm to BP Properties Ltd.
>
> As BP Properties is not obliged by the same constraints as the Pension Trust and since we wish to help you as much as possible, we are prepared to allow you to remain in occupation of the house and garden rent free for as long as you may wish and for the rest of your life if you so desire.
>
> I am pleased accordingly to confirm that we will not require you to give possession during your lifetime or until such time as you may choose no longer to live in the house, and we have given the necessary instructions so that no proceedings will be commenced until you personally no longer live there.
>
> I do hope that by making this gesture you will accept the situation and that no further problems will arise in the future.

16. Because of these two letters the landlords' solicitors did not attend the appointment before the judge on November 4 1974. Mrs Buckler's solicitors produced the letters to the judge, and he stayed execution on the warrant for possession pending Mrs Buckler's agreement to the proposals in the letters. Her solicitor then telephoned Mrs Buckler, told her of the letters and sought her instructions. Before she had given any instructions, however, the landlords' solicitors themselves wrote to the county court, at some date prior to November 25 1974 and withdrew the warrant for possession. Mrs Buckler therefore never expressly accepted or rejected the terms of the two letters. She was left in undisturbed possession of the farmhouse and garden, rent free, until her death, which occurred in March 1983.

17. As I have mentioned, BP Properties Ltd were registered as the proprietors of the whole of the farm at HM Land Registry in November 1982. If, however, by that time Mrs Buckler had acquired a valid title to the farmhouse and garden by adverse possession, she would have had an overriding interest to which the registration of BP Properties Ltd was necessarily subject, and her personal representatives would be entitled to obtain rectification of the register. In fact no grant of representation to the estate of Mrs Buckler has so far been obtained, but nothing has turned on this in the course of the argument since, even though on the facts Mr Buckler junior must claim

through Mrs Buckler's estate if he has any claim to the farmhouse and garden at all, BP Properties Ltd are concerned to establish their title and claim possession against all members of the Buckler family.

18. When this action was brought, the Limitation Act 1980 was in force. Section 15(1) provides that:

> no action shall be brought by any person to recover any land after the expiration of 12 years from the date on which the right of action accrued to him, or, if it first accrued to some person through whom he claims, to that person.

That is to the same effect as section 4(3) of the 1939 Act. Section 16 of the 1939 Act (now section 17 of the 1980 Act) provided that at the expiration of the period prescribed by the Act for any person to bring an action to recover land, the title of that person to the land should be extinguished. Accordingly the primary claim for Mr Buckler junior on this appeal has been that there was adverse possession of the farmhouse and garden from, at latest, February 2 1955 when Mr Frederick Buckler's tenancy expired, or alternatively from the date in 1953 when he last paid any rent, with the result that the landlord's title was extinguished at latest in February 1967 under section 16 of the 1939 Act. If that be right, it is submitted that what was done in 1974 was of no effect because the landlord's title had already been extinguished.

19. Alternatively, it is submitted for Mr Buckler junior that, even if the landlords' title had not been extinguished by October 31 1974, the proposals in the letters of that date, as they were merely unilateral and were never agreed to by Mrs Buckler, had no effect in law on the adverse nature of Mrs Buckler's continuing possession of the farmhouse and garden. It is admitted for BP Properties Ltd that Mrs Buckler was in adverse possession from her husband's death in 1965-67 until October 31 1974. It is submitted for Mr Buckler junior that, if the proposals in the letter had no effect in law on the adverse nature of Mrs Buckler's continuing possession, then the title of BP Properties Ltd was barred and extinguished on the expiration of 12 years from Mr Frederick Buckler's death, viz at latest in 1979.

20. A third argument put forward for Mr Buckler junior derives from the fact that the actual conveyance of the farmhouse and garden by BP Pension Trust Ltd to BP Properties Ltd did not take place until May 1975. It is consequently submitted that any licence to occupy rent free which was purportedly granted by the letters of October 31 1974 was granted by the wrong company; it should have been granted by BP Pension Trust Ltd, the legal and theretofore beneficial owner, and not by BP Properties Ltd. I see nothing in this rather technical point; the letters record sufficiently that BP Properties Ltd had agreed to buy the property from the Pension Trust, and BP Properties Ltd was therefore *prima facie* in a position to grant a licence to Mrs Buckler.

21. The judge rejected the primary claim on the ground that Mr Frederick Buckler's possession during his lifetime was not 'adverse', and so time did not begin to run against the landlords until after his death. On the second argument he held that the effect of the letters of October 31 1974 was to constitute Mrs Buckler the licensee of BP Properties Ltd, and thus no longer in adverse possession, even though the letters were written unilaterally and without any agreement with her. The defence under the 1939 and 1980 Acts therefore failed.

22. The judge concluded that Mr Frederick Buckler was not in adverse possession because in the judge's view adverse possession required an *animus possidendi. Animus possidendi* was defined by Slade J in *Powell* v *McFarlane* (1979) 38 P & CR 452 at p 471 as involving:

> the intention, in one's own name and on one's own behalf, to exclude the world at large, including the owner with the paper title if he be not himself

> the possessor, so far as is reasonably practicable and so far as the processes of the law will allow.

The judge felt that Mr Frederick Buckler did not have this *animus* partly because at one stage in March 1965 when Western Ground Rents' agents offered Mrs Buckler a tenancy Mr Frederick Buckler was complaining that Western Ground Rents had refused to let him the land (thus perhaps suggesting that he himself would have been glad of the offer of a tenancy), and partly, I think, because at another time Mr Frederick Buckler was saying that he did not want to do anything which might jeopardise Mrs Buckler's claims to ownership of the land. The judge then held - paradoxically, in my view, on the facts of this case - that he could not give any effect to Mrs Buckler's obvious *animus possidendi* while her husband was alive, since, while he was alive, only his intention counted.

23. For my part, I would hold without hesitation on the facts that Mr and Mrs Frederick Buckler were jointly in adverse possession of the farmhouse and garden from the expiration on February 2 1955 of his previous tenancy. It is possible, as the previous tenancy was not under a written agreement, that there was adverse possession also from the last payment of rent in 1953 to February 2 1955; see *Hayward* v *Chaloner* [1968] 1 QB 107. But the extra period has no relevance to the outcome of this appeal.

24. Even if there were adverse possession from February 2 1955 or from the last payment of rent in 1953, it does not follow that the landlord's title was 'extinguished' 12 years thereafter in any sense which would render what was done in September, October and November 1974 nugatory. The statutory concept of the 'extinguishment' of a person's title by a requisite period of occupation was examined by Lord Radcliffe in *St Marylebone Property Co Ltd* v *Fairweather* [1963] AC 510. He pointed out at p 535 that the squatter comes in and remains in always by right of possession which in due course becomes incapable of disturbance as time exhausts the one or more periods allowed by statute for successful intervention. He commented, also at p 538, that the right or title extinguished was conterminous with the right of action, the barring of which was the occasion of the extinguishment.

25. In the present case the 1962 county court proceedings were commenced, and the possession order of December 11 1962 was obtained, well before there had, on any view, been 12 years' adverse possession of the farmhouse and garden. If proceedings to recover land are begun before there has been 12 years' adverse possession - eg if they are begun in the eleventh year - then the right of action is, on the wording of section 4(3) of the 1939 Act or section 15 of the 1980 Act, unaffected by the subsequent expiration of the 12-year period while the proceedings are pending. If that be so, it could not, in my judgment, be a correct reading of section 16 of the 1939 Act to hold that the title of the plaintiff to the land is extinguished while an action for the recovery of the land, launched in due time, is still pending. On Lord Radcliffe's approach the title can then be extinguished only if or in so far as it cannot be established and vindicated by the action which has been brought in due time.

26. So again, if an action to recover land is brought within the 12 years and judgment for possession is given in that action, albeit after the expiration of the 12 years, it would be idle to suppose that the judgment for possession could, because of the expiration of the 12 years, never be enforced. The judgment must be enforceable if the action was started in due time. So equally, if the action is started in due time, and judgment for possession is granted, eg shortly before the expiration of 12 years from the date on which the right of action accrued, it could not be suggested that the judgment would cease to be enforceable on the expiration of 12 years from the date on which the original right of action accrued.

27. The true position, in my judgment, under the 1939 Act was that after a judgment for possession had been obtained in an action for the recovery of land begun in due time, the successful plaintiff had 12 years from the date of the judgment to enforce the judgment before any question of

limitation could arise. This result may follow from the view expressed by Scott LJ in *Lougher* v *Donovan* [1948] 2 All ER 11 that an application to issue or extend a warrant for possession under a judgment for possession is itself an 'action brought upon a judgment' for which there was a prescribed limitation period of 12 years under section 2(4) of the 1939 Act. Alternatively, it may be based on the view expressed by the editors of the *County Court Practice* in their notes to the present Order 26, rule 5 that, although the right to sue on a judgment has always been regarded as a matter quite distinct from the right to issue execution under it which is essentially a matter of procedure (*W T Lamb & Sons* v *Rider* [1948] 2 KB 331), nevertheless leave to issue a warrant of execution will not be granted, nor will a warrant issued be renewed, at a time when the limitation period appropriate to an action on the judgment has expired. It is unnecessary to explore in any detail the mechanics for enforcing a judgment for possession. The order of Judge Watkin Powell of September 19 1974 giving leave to enforce the order for possession of December 11 1962 was made within 12 years after the making of the order for possession and accordingly was an order which Judge Watkin Powell had jurisdiction to make.

28. It follows that enforcement of the judgment for possession of December 11 1962 was still open to the landlords at October 31 1974, and their title to the farmhouse and garden had not been extinguished. I would accordingly reject the contention that Mrs Buckler had acquired a title by adverse possession before October 31 1974.

29. It remains to consider the effect on Mrs Buckler's possession of the letters at that date. These unilaterally granted her a licence to occupy the farmhouse and garden rent-free for the rest of her life.

30. Section 10(2) of the 1939 Act provides that:

> Where a right of action to recover land has accrued and thereafter, before the right is barred, the land ceases to be in adverse possession, the right of action shall no longer be deemed to have accrued and no fresh right of action shall be deemed to accrue unless and until the land is again taken into adverse possession.

31. It is said for BP Properties Ltd that under the letters Mrs Buckler became a licensee for life of the farmhouse and garden. Therefore she was no longer in adverse possession and time ceased to run in her favour. This is supported by the statement of Slade J in *Powell* v *McFarlane* at p 469 that time can never run in favour of a person who occupies or uses land by licence of the owner with the paper title and whose licence has not been duly determined. In so far as it is urged for the other side that Mrs Buckler's possession continued to be adverse before and after the receipt of the letters, without any change, and was referable to her own expressed belief that she was the owner of the land because of her grandfather's title, it is said for BP Properties Ltd that there is a rule that 'possession is never adverse if it can be referred to a lawful title', and reference is made to the judgment of Harman LJ in *Hughes* v *Griffin* [1969] 1 All ER 460 at p 464.

32. The claim that a unilateral licence can stop time running is a new one. It may be of some general importance in that it would enable a person who is not prepared to incur the obloquy of bringing proceedings for possession, or of enforcing a possession order, to keep his title alive for very many years until it suits him to evict. It might be thought that for title to be kept alive in this way was contrary to the policy of the statute as exemplified by section 13 of the 1939 Act, which reproduced earlier statutory provision to the same effect and prevented any right of action to recover land being preserved by formal entry or continual claim.

33. So far as the facts are concerned, it would in my judgment be artificial to say that Mrs Buckler 'accepted' the terms set out in the two letters; BP Properties Ltd neither sought nor waited for her acceptance. It would be equally artificial to say that there was any consideration in law for those terms.

34. It may be that the result would have been different if Mrs Buckler had, as soon as she learned of the letters, plainly told BP Properties Ltd that she did not accept the letters, and maintained her claims to be already the owner of the property; she did not, however, do that. She accepted her solicitors' advice that as the warrant for possession had been withdrawn, she should do nothing while the 12-year period from the date of the possession order of December 11 1962 expired. In essence she was not asserting during the time from the receipt of the letters until after December 11 1974 - or indeed thereafter - any claim to ownership of the farmhouse and garden, or any intention to exclude the owner of the paper title.

35. Whether BP Properties Ltd could or could not in law, in the absence of consideration, have sought to determine in her lifetime the licence granted to Mrs Buckler by the two letters, they did not in fact seek to do so. Had they sought to do so, they would in the absence of any repudiation of the letters by Mrs Buckler have had to give Mrs Buckler a reasonable time to quit as with any licensee.

36. The nature of Mrs Buckler's possession after receipt of the letters cannot be decided just by looking at what was locked up in her own mind. It must depend even more, on this aspect of the case, on the position as seen from the standpoint of the person with the paper title. What could that person have done? The rule that possession is not adverse if it can be referred to a lawful title applies even if the person in possession did not know of the lawful title; the lawful title would still preclude the person with the paper title from evicting the person in possession. So far as Mrs Buckler was concerned, even though she did not 'accept' the terms of the letters, BP Properties Ltd would, in the absence of any repudiation by her of the two letters, have been bound to treat her as in possession as licensee on the terms of the letters. They could not have evicted her (if they could have done so at all) without determining the licence.

37. I can see no escape therefore from the conclusion that, whether she liked it or not, from the time of her receipt of the letters, Mrs Buckler was in possession of the farmhouse and garden by the licence of BP Properties Ltd, and her possession was no longer adverse within the meaning of section 10 of the 1939 Act.

38. Accordingly I would dismiss this appeal.

39. MUSTILL LJ and SIR EDWARD EVELEIGH agreed and did not add anything.

The appeal was dismissed and possession ordered in six weeks. Leave to appeal to the House of Lords was refused but a stay pending a possible application to the House was granted on terms. An order for costs against the appellant was not to be enforced without leave and legal aid taxation of appellant's costs was ordered.

The electronic text of this judgment was provided by Estates Gazette, whose assistance is gratefully acknowledged.

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